

The Competition Commission Of India (Return On Measures For The Promotion Of Competition Advocacy, Awareness And Training On Competition Issues) Rules, 2008

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The Competition Commission Of India (Return On Measures For The Promotion Of Competition Advocacy, Awareness And Training On Competition Issues) Rules, 2008

Rule

THE-COMPETITION-COMMISSION-OF-INDIA-RETURN-ON-MEASURES-FOR-THE-PROMOTION-OF-COMPETITION-ADVOCACY-AWARENESS-AND-TRAINING-ON-COMPETITION-ISSUES-RULES-2008 of 2008

Published on 10 October 2008

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The Competition Commission Of India (Return On Measures For The Promotion Of Competition Advocacy, Awareness And Training On Competition Issues) Rules, 2008

Published vide Notification G.S.R. 727(E), dated 10.10.2008, published in the Gazette of India, Extraordinary, Part 2,

Section 3(i), Sl. No. 549, dated 10.10.2008.

395.

G.S.R. 727 (dated), 10th October, 2008- In exercise of the powers conferred by clause (l) of sub-section (2) of the section 63 read with sub-section (1) of section 53 of the Competition Act, 2002 (12 of 2003

), the Central Government hereby makes the following rules, namely:--

1.

Short title and commencement

-(1) These rules may be called the Competition Commission of India (Return on Measures for the Promotion of Competition Advocacy, Awareness and Training on Competition Issues) Rules, 2008.

(2)

These rules shall come into force from the date of their publication in the Official Gazette.

2.

Definitions

-(1) In these rules, unless context otherwise requires,--

(a)

"Act" means the Competition Act, 2002 (12 of 2003

);

(b)

"Appellate Tribunal" means the Appellate Tribunal established under sub-section (1) of section 53-A of the Act;

(c)

"Commission" means the Competition Commission of India established under section 7 of the Act;

(d)

"Year" means the financial year beginning on 1st April and ending on 31st March of the year immediately following.

(2)

Words and expression used and defined in the Competition Act, 2002 but not defined in these rules, shall have the same meanings assigned to them in that Act.

3.

Preparation and furnishing of the return on measures

-(1) The Commission shall furnish on the completion of every year return and statements in the form as laid down in the Schedule annexed to these rules in regard to any proposed or existing measures for the promotion of competition advocacy, creating awareness and imparting training about competition issues to the Central Government, for the activities undertaken, giving a true and full account of its activities, performed during the previous year.

(2)

The Central Government may seek from the Commission such other information with regards to any proposed or existing measures for the promotion of competition advocacy, creating awareness and imparting training about competition issues as it may decide from time to time.

(3)

The Commission may also include in the return any other item, not included in the Schedule, with the prior permission of the Central Government.

(4)

The Commission, shall forward the return to the Central Government within a period of thirty days immediately following the completion of year for which it has been prepared.

(5)

The matters relating to form and time of preparation of return, with respect to which no express provision has been made in these rules, shall be referred in each case to the Central Government for its decision and the decision of the Central Government thereon shall be binding on the Commission.

Schedule

FORM OF THE RETURN ON MEASURES ON COMPETITION ADVOCACY AND ANNEXURES

(See sub-rule (1) of rule 3)

The return and statements shall be submitted in the following format :

I. Competition Advocacy

(i)

Workshops, seminars and other interactions with public/experts/policy makers/regulatory bodies on Competition Advocacy and for creating awareness of competition issues.

Subject matter of the workshop/seminar

Number of participants

Dates during which held

Beneficiaries, i.e., Government officials, industry, academicians, professionals and others to be specified

Method of funding

(ii)

Papers and studies published for competition advocacy and for creating awareness of competition issues.

Title of the publication

Brief purpose/target group

Month of publication

Whether original or reprint

II. Capacity building of stakeholders to participate in competition regulatory process.

Subject matter of the training programme

Number of participants

Dates during which held

Brief intent and the purpose

Method of funding

Remarks, if any

III. Competition related Sectoral/Regulatory impact assessment; Market studies and research projects carried out by the Commission.

Title of the market study/research project

Purpose

Date of initiation

Date of completion

Remarks, if any

IV. Consultation papers published/placed on website of the Commission.

V. Any other effort made for competition advocacy, creating awareness and capacity building in competition matters.

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